

9. 9:00 AM CASE NUMBER: C24-00026
CASE NAME: AVERY TIDWELL VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MINOR'S COMPROMISE AS TO RON BRUSSARD**
FILED BY: BRUSSARD, RON
TENTATIVE RULING:

Petitioner **Avery Tidwell's** Petition for Approval of Compromise of Minor **Ron Brussard's** ("Minor") Claim ("Petition"), filed on April 13, 2026, is **granted**.

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged with the Court on April 13, 2026.

10. 9:00 AM CASE NUMBER: C24-02448
CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: TRILION CAPITAL FUND, LLC
TENTATIVE RULING:

Before the Court is the unopposed Demurrer of Cross-Defendant Trillion Capital Fund, LLC (Trillion) filed April 17, 2026 to the First Amended Cross-Complaint filed February 20, 2026 by Defendant and Cross-Complainant Sunayana Bedi (Bedi).

Procedural Background

In the underlying complaint, Plaintiff, FAT.HOMES, LLC, (Plaintiff) filed a Complaint (Complaint) against Defendants, Brar Group, LLC (Brar Group), Sukhpreet Brar (Brar) and Bedi (collectively "Defendants") for (1) Setting Aside Fraudulent Transfer (2) Fraud (3) Breach of Contract and (4) Rescission.

Bedi then filed a First Amended Cross-Complaint (CC) against Plaintiff, Brar Group, Brar, and Cross-Defendant Trilion for various causes of action, but

against Trilion only for quiet title to the real property located at 6178 Bernhard Avenue, Richmond, CA 94805 (the "Property"). Bedi has incorporated by reference the allegations of Plaintiff's Complaint into her Cross-Complaint. (CC, ¶9).

Trilion demurs to the Seventh Cause of Action in the Cross-Complaint, for quiet title on the grounds that Bedi has failed to state sufficient facts to establish any adverse interest or that Trilion's attempt at foreclosure is wrongful absent any facts to support such a claim.

Trilion's Request for Judicial Notice (RJN) is **granted**.

Factual Allegations

Around March of 2024, Brar Group took a loan from Trilion in the principal amount of \$653,300.00 secured by a Deed of Trust against the Property. (RJN, Ex. 1). Around June 6, 2024, Brar Group executed a Grant Deed to the Property, but the Grant Deed was not recorded until July 31, 2024. (See Complaint, Ex. A; RJN, Ex. 2). Plaintiff alleges Brar Group sold it the Property for \$195,000.00 on June 6, 2024, hence the Grant Deed. (Complaint, ¶9).

Plaintiff alleges that Brar asked Plaintiff not to record the Grant Deed because Brar had a loan that needed to be transferred to Plaintiff's name. Id. at ¶10. However, Plaintiff alleges that Brar Group executed a Deed of Trust against the Property in favor of Bedi for \$250,000.00. (See Complaint, Ex. B; RJN, Ex. 3). Plaintiff alleges that Brar Group did not own the Property at the time it took out the Deed of Trust in favor of Bedi. (Complaint, ¶18).

Bedi, on the other hand, alleges that Brar Group and Bedi entered into a Note about July 17, 2023. (CC, ¶10, Ex. A). Bedi's Note, Exhibit A to her Cross-Complaint, demonstrates that the Note was secured by the real property located at 3017 Sentney Ave., Culver City, CA, 90232. (CC, ¶11).

Bedi alleges Brar Group defaulted on her Note and she filed an action and lis pendens on another Property Brar Group allegedly owned. (CC, ¶12). Bedi claims that in exchange for dismissing her lawsuit and releasing the lis pendens, Brar Group executed that \$250,000.00 Deed of Trust in her favor against the Property. (CC, ¶13).

Bedi alleges she did not know that Brar Group had already executed a Grant Deed in favor of Plaintiff. (CC, ¶15). Bedi further claims a Reconveyance of Deed of Trust was forged and recorded against the Property around October 2024 thereby extinguishing her interest in the Property. (CC, ¶17, Ex. C). Bedi claims that Plaintiff, Brar, and Brar Group acted in concert to deprive her of her security interest in the Property. Bedi seeks to cancel the reconveyance of her deed of trust and seeks to quiet title.

The only place Trilion is mentioned is in Bedi's cause of action for quiet title in which she alleges Trilion allegedly knew that there was an issue with the reconveyance of her deed of trust and that Trilion's attempts to foreclose under Trilion's Deed of Trust was "wrongful." (CC, ¶57).

Legal Standard

A demurrer objects to a pleading by challenging its legal sufficiency, either procedurally or based on the substance of the pleading. (Code of Civil Procedure (CCP) § 430.10.) A demurrer is also appropriate where a complaint fails to allege facts to state a cause of action. (CCP §430.10(e)) In reviewing the sufficiency of a complaint against a demurrer, the Court is to treat the demurrer as admitting all material facts properly pled, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

"A demurrer tests the sufficiency of the complaint by raising questions of law." *Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706. A demurrer can be used to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially

noticeable. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Furthermore, a demurrer can be used where Plaintiff has included allegations that clearly disclose some defense or bar to recovery. (*Crosstalk Productions, Inc. v. Jacobson* (1985) 65 Cal.App.4th 631, 635. The court may not consider contentions, deductions, or conclusions of fact or law. (*Moore v. Conliffe* (1994) 7 Cal. 4th 634.) Plaintiff is required to allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Serv.* (2000) 81 Cal. App. 4th 39, 96.). Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (CCP § 430.10(e); *Zelig v. Cnty. of Los Angeles* (2000) 27 Cal. 4th 1112.)

A demurrer may also be sustained if a complaint is “uncertain.” Uncertainty exists where a complaint’s factual allegations are so confusing, they do not sufficiently apprise a defendant of the issues it is being asked to meet. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).)

Analysis

An action for quiet title seeks “to establish title against adverse claims to real or personal property or any interest therein. (CCP § 760.020.) Section 761.020 of the Code of Civil Procedure provides that in an action for quiet title, the party bringing the action must plead the following:

- a) A description of the property that is subject of the action,
- b) the title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. **If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession,**
- c) The adverse claims to the title of the plaintiff against which a determination is sought,
- d) The date as of which the determination is sought, and
- e) a prayer for the determination of the title of the plaintiff against the adverse claims.

(CCP §761.020 emphasis added.)

Bedi has named Trilion in her cause of action for quiet title on the basis of allegations that Trilion “claims an adverse interest in the Subject Property based on a Forged Deed of Reconveyance records on October 30, 2024 as Instrument No. 2024-0073535 and Grant Deed with the Contra Costa Recorder Office on July 31, 2024, DOC 2024-0073535.” (CC ¶ 55.) Bedi alleges Trilion “similarly was aware of the infirmities with the forged Deed of Reconveyance such that its attempt at foreclosure is wrongful.” (CC ¶ 57.)

The Cross-Complaint fails to allege any specific facts as to how Trilion supposedly knew the

reconveyance was forged or why Trilion's foreclosure was wrongful. Bedi asserts that "the Forged Deed of Reconveyance purposes to include notarized signature of (Cross-)Plaintiff Sunayana Bedi. Bedi, however, never signed, approved, or authorized her signature to be place on any deed of reconveyance." (CC ¶ 17.) Bedi then alleges on information and belief that "FAT.Homes., LLC, working in concert with Sukhpreet Brar and Brar Group, LLC has actual knowledge that the Forged Deed of Revconveyance was fraudulently procured and that Bedi's Deed of Trust remained unpaid and unsatisfied." (CC ¶ 18.) None of these allegations implicate Trilion or constitute specific facts describing adverse possession by Trilion.

Bedi fails to establish how Trilion's claims to the Property are without right.

The demurrer to the Seventh Cause of Action against Trilion is **sustained** with leave to amend.

Cross-Defendant Trilion shall serve Cross-Plaintiff with notice of the entry of this order. Cross-Plaintiff Bedi shall file and serve an amended pleading 30 days from the date of service of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C24-02448

CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**

FILED BY: TRILION CAPITAL FUND, LLC

TENTATIVE RULING:

Before the Court is the unopposed Motion to Strike Portions of Defendant / Cross-Complainant Sunayna Bedi's (Bedi) First Amended Cross-Complaint (Cross-Complain, or CC) brought by Cross-Defendant Trilion Capital Fund, LLC (Trilion).

Trillion seeks an order striking from the Prayer, ¶ 6, "Punitive Damages."

Separately, the court has sustained Trilion's Demurrer to the Seventh Cause of Action, for quiet title, which was the only cause of action against Trilion in the Cross-Complaint. (See Line 10 above.) A cause of action for quiet title is not a tort claim and does not award monetary damage. As such there are no claims or allegations against Trilion that would support an award of punitive damages.

Punitive damages are not available in quiet title causes of action, because the action for quiet title is equitable in nature. (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, citing *Caira v. Offner* (2005) 126 Cal.App.4th 12, 25, 24 Cal.Rptr.3d 233, citing *Strauss v. Summerhays* (1984) 157 Cal.App.3d 806, 812.)

The motion to strike punitive damages as to Cross-Defendant Trilion is **granted**.

Cross-Defendant Trilion shall serve Cross-Plaintiff with notice of the entry of this order. Cross-Plaintiff Bedi shall file and serve an amended pleading 30 days from the date of service of notice of entry of this order.